

## 25STCV19226 25STCV19226

County: los-angeles

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### BACKGROUND

This case is an employment discrimination matter. Plaintiff Luis Riba was employed by Defendant DirectTV, LLC. During his employment, Plaintiff allegedly took disability leave for about three months. Soon after, Plaintiff was terminated.

On July 1, 2025, Plaintiff filed a complaint against Defendant. The complaint alleged eight employment-related causes of action stemming from the facts alleged above.

On March 20, 2026, Defendant filed a Motion to Compel Arbitration and Stay Proceedings ("Motion").

On June 1, 2026, Plaintiff filed an opposition.

On June 22, 2026, Defendant filed a reply.

### TENTATIVE RULING

Defendant's Motion to Compel Arbitration is GRANTED. All future proceedings in this department are stayed pending arbitration.

## EVIDENTIARY OBJECTIONS

Plaintiff

raises several evidentiary objections to the Declaration of Stephanie Boyce.  
After consideration, the Court OVERRULES all objections.

## LEGAL STANDARD

A

party to an arbitration agreement may summarily move or petition the court for an order compelling another non-compliant party to arbitrate their covered claims. (Code Civ. Proc., §§ 1281.2, 1290.2; 9 U.S.C. §§ 4, 6.)

California

law, like Federal law, reflects a strong public policy favoring arbitration and the fundamental principle that arbitration is a matter of contract. (See *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339; *Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 8-9.) “To further that policy, Code of Civil Procedure, section 1281.2 requires a trial court to enforce a written arbitration agreement unless one of three limited exceptions applies. Those statutory exceptions arise where (1) a party waives the right to arbitration; (2) grounds exist for revoking the arbitration agreement; and (3) pending litigation with a third party creates the possibility of conflicting rulings on common factual or legal issues.” (*Acquire II, Ltd. v. Colton Real Estate Group* (2013) 213 Cal.App.4th 959, 967 [internal citation omitted].) “[U]nder both the FAA and California law, ‘arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exists at law or in equity for the revocation of any contract.’” (*Higgins v. Superior Court* (2006) 140 Cal.App.4th 1238; *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 569; *Morgan v. Sundance* (2024) 596 U.S. 411, 419.)

On

petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and where a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate if it determines an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2; *Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505 [noting that “when presented with a petition

to compel arbitration, the trial court's first task is to determine whether the parties have in fact agreed to arbitrate the dispute."].)¿

The petitioner bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and the opposing party bears the burden of proving any fact necessary to its defense by the evidentiary standard. (See *Gatton v. T-Mobile USA, Inc.* (2007) 152 Cal.App.4th 571, 579.)¿

Finally, "[i]f a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc., § 1281.4.) And similarly, under the FAA, a court is required to stay the proceedings for a case that has been referred to arbitration, upon application of one of the parties, during the pendency of such arbitration. (9 U.S.C. § 3.)

## DISCUSSION

### I. Existence of Arbitration Agreement

The Court finds that Defendant has proven the existence of a valid arbitration agreement between the parties.

The party seeking arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence.¿(See *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164-65 (*Gamboa*).) This can be done "by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature." (Id. at 165 [citing *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th

541, 219].) Alternatively, this burden can be met by setting forth the agreement's arbitration provisions in the motion. (See Gamboa, supra, 72 Cal.App.5th at p. 165.)

Once

the moving party meets their burden, the opposing party may produce evidence challenging the authenticity of the document. (See *ibid.*) The opposing party may do so by "[testifying] under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement." (*Ibid.*) If this burden is met, the burden shifts back to the moving party to prove the contract is authentic, including the authenticity of the signatures. (See *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 845-46.) Doubts are resolved in favor of arbitrability and ordinary rules of contract interpretation (e.g., resolve doubts against the drafter) apply. (See *Greenspan v. LADT, LLC* (2010) 185 Cal.App.4th 1413, 1437.)

a.

Defendant's

Initial Burden

The

Court finds that Defendant has met its initial burden of proving the existence of a valid arbitration agreement.

In

July 2022, Plaintiff began the onboarding process to secure a job with Defendant. (See *Boyce Decl.*, ¶ 3.) As part of the onboarding process, Plaintiff signed the Management Arbitration Agreement ("MAA"). (See *id.* at ¶ 6.) The MAA states that Plaintiff would arbitrate any claims:

arising out of or related to your employment or termination of employment with the Company and any other disputes regarding the employment relationship, trade secrets, unfair competition, compensation, breaks and rest periods, termination, defamation, retaliation, discrimination or harassment and claims arising under the Uniform Trade Secrets Act, Civil Rights Act of 1964, Americans With Disabilities Act, Age Discrimination in Employment Act, Family Medical Leave Act, Fair Labor Standards Act, Genetic Information Non-Discrimination Act, and state statutes and local laws, if any, addressing the same or similar subject matters, and all other state and local statutory and common law claims.

(See id. at Exh. A.)

Defendant

has provided a copy of the MAA purporting to bear Plaintiff's signature. (See *ibid.*) Therefore, Defendant has satisfied its initial burden of proving the existence of a valid arbitration agreement. (See *Gamboa*, *supra*, 72 Cal.App.5th at pp. 164-65.)

b.

Plaintiff's

Burden

Under California

law, the essential elements of contract formation are: (1) the parties are capable of contracting; (2) the parties' consent; (3) a lawful object; and (4) sufficient cause or consideration. (See *Norcia v. Samsung Telecommunications America, LLC* (9th Cir. 2017) 845 F.3d 1279, 1284 [citing Civ. Code § 1550.] "Consent is not mutual, unless the parties all agree upon the same thing in the same sense." (Civ. Code, § 1580.) Signing a contract is one way of demonstrating a party's assent to its terms. (See *Marin Storage & Trucking, Inc. v. Benco Contracting and Engineering, Inc.* (2001) 89 Cal.App.4th 1042, 1049.) However, it is not the only way. "Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings." [Citations.] The parties' outward manifestations must show that the parties all agreed "upon the same thing in the same sense." [Citation.] If there is no evidence establishing a manifestation of assent to the "same thing" by both parties, then there is no mutual consent to contract and no contract formation." (See *Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293.) Further, an offeree, regardless of any apparent manifestation of their consent, is not bound by inconspicuous contractual provisions of which they were unaware of and contained in a document whose contractual nature is not obvious. (See *ibid.*)

Mutual

consent is even more important when handling arbitration provisions, especially those contained in contracts formed over the internet. (See *ibid.*) "Thus, in order to establish mutual assent for the valid formation of an internet

contract, a provider must first establish the contractual terms were presented to the consumer in a manner that made it apparent the consumer was assenting to those very terms when checking a box or clicking on a button.” (Sellers v. JustAnswer LLC (2021) 73 Cal.App.5th 444, 461.)

Here, Plaintiff

contends that he never electronically signed the MAA. (See Riba Decl., ¶ 3 [“I did not sign any stand-alone arbitration agreement with DIRECTV, electronically or otherwise.”].) More specifically, Plaintiff contends that he has no recollection of typing his name on the MAA, entering his email address on the MAA, or clicking any “submit” button on the bottom of the MAA. (See id. at ¶¶ 4, 6.) He asserts that any corresponding information on the MAA was auto populated by Defendant’s onboarding system. (See id. at ¶ 6.) Furthermore, Plaintiff contends that he was never sent a confirmation email alleging or confirming that he signed the MAA. (See id. at ¶ 5.)

Plaintiff

admits he was presented with the MAA during the onboarding process. (See id. at ¶ 8; see also id. at Exh. C, pp. 8-33.) But Plaintiff asserts he did not click any “I agree” button or sign the document, personally or electronically. (See id. at ¶ 8; see also id. at Exh. C, pp. 8-33.) Rather, Plaintiff just kept hitting the “Continue” button to proceed along with the relevant course. (See id. at Exh. C, pp. 8-33.)

The

Court finds that Plaintiff has met his burden of challenging the authenticity of his purported signature and the validity of the MAA. (See Gamboa, supra, 72 Cal.App.5th at p. 165.) Accordingly, the burden now shifts back to Defendant to prove the contract is authentic, including the authenticity of the signatures. (See Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 845-46.)

c.

Defendant

Has Met Its Burden

The

Court finds that Defendant has met its ultimate burden to prove that the MAA is authentic and that Plaintiff consented to its terms. Accordingly, Defendant has established the existence of a valid arbitration agreement.

“California

law in this area is settled: when an employee continues his or her employment after notification that an agreement to arbitration is a condition of continued employment, that employee has impliedly consented to the arbitration agreement.” (Diaz v. Sohnen Enterprises (2019) 34 Cal.App.5th 126, 130.)

In

reply, Defendant contends that Plaintiff consented to the MAA by completing the Management Arbitration Agreement course and beginning employment with Defendant. The Management Arbitration Agreement course informed Plaintiff that if he accepted employment with Defendant, he would be bound to arbitrate any claims within the defined scope. (See Riba Decl., Exh. C, p. 13 [“If you accept employment with DIRECTV, you agree to arbitration as the sole and exclusive process for resolving disputes between you and the company.”].) Thus, consent to arbitration was a condition of employment. (See Boyce Decl., ¶ 8 [“He would not have been permitted to start work without acknowledging the MAA and other onboarding documents.”].) Accordingly, Plaintiff’s decision to work for Defendant after acknowledging the arbitration provision demonstrates his consent to the MAA. (See Diaz v. Sohnen Enterprises (2019) 34 Cal.App.5th 126, 130.)

Accordingly,

Defendant has met its burden of proving that the MAA is authentic and that Plaintiff consented to its terms. (See Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 845-46.) Therefore, Defendant has met its ultimate burden of establishing the existence of a valid arbitration agreement.

II.

Waiver

of Right to Compel Arbitration

The

Court finds that Defendant did not waive its right to compel arbitration.

The

Court may deny a petition to compel arbitration if it finds the moving party has waived its right to compel arbitration. (Code Civ. Pro., § 1281.2, subd. (a).) “There is no single test for waiver of the right to compel arbitration, but waiver may be

found where the party seeking arbitration has (1) previously taken steps inconsistent with an intent to invoke arbitration, (2) unreasonably delayed in seeking arbitration, or (3) acted in bad faith or with willful misconduct." (Davis v. Continental Airlines, Inc. (1997) 59 Cal.App.4th 205, 211 [citing Christensen v. Dewor Developments (1983) 33 Cal.3d 778, 782].) "To establish waiver, there is no requirement that the party opposing enforcement of the contractual right demonstrate prejudice or otherwise show harm resulting from the waiving party's conduct." (Quach v. California Commerce Club, Inc. (2024) 16 Cal.5th 562, 584.)

Here,

Plaintiff contends that Defendant waived its right to compel arbitration. To support this contention, Plaintiff refers to Defendant: (1) waiting eight months after the complaint was filed to file this Motion; (2) refusing to engage in discovery yet waiting three more months to file this Motion; (3) offering to settle the case; (4) ignoring records requests from Plaintiff; and (5); continuing to delay filing the Motion after Plaintiff became self-represented. (See Opposition, p. 12:5-16.)

These

assertions do not demonstrate that Defendant took any proactive steps to pursue this case in Court so as to constitute a waiver of its right to arbitrate. In fact, it appears that Defendant's actions were consistent with its intent to invoke arbitration. Defendant refused to engage in discovery and tried to settle the case before litigation commenced. There is no indication that Defendant unreasonably delayed, acted inconsistently with an intent to invoke arbitration or acted in bad faith. Thus, the Court does not find a basis to hold that Defendant waived its right to invoke arbitration. (See Davis v. Continental Airlines, Inc. (1997) 59 Cal.App.4th 205, 211.)

III.

Unconscionability

The

Court finds that the MAA is not procedurally unconscionable. Therefore, the MAA cannot be held unenforceable on unconscionability grounds, even if some of its elements are substantively unconscionable.

Unconscionability

refers to "an absence of



meaningful choice on the part of one of the parties together with contract

terms which are unreasonably favorable to the other party.” (Sonic-Calabasas A, Inc. v. Moreno (2013) 57 Cal.4th 1109, 1133.) There

are two elements to unconscionability: (1) procedural, which focuses on the manner the agreement was negotiated; and (2) substantive,

which focuses on whether the

terms of the agreement unreasonably favor one side over the other. (Armendariz

v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 113-15 (Armendariz).)

Both elements

must be present for the court

to refuse an agreement under unconscionability, but they need not be present to the

same degree. (Ibid.) “Essentially

a sliding scale is invoked which disregards the regularity of the procedural

process of the contract formation, that creates the terms, in proportion to the

greater harshness or unreasonableness of the substantive terms themselves.” (Id. at 114.)

Procedural Unconscionability

The

Court does not find the MAA to be procedurally unconscionable.

Procedural

unconscionability focuses on

the making of an agreement. (See Armendariz, supra, at 113-15.) The two primary

focuses in procedural unconscionability are oppression and surprise. (Id. at 114.) Oppression

“arises from unequal bargaining power” between the parties. (Ajamian v. CantorCO2e, L.P. (2012) 203

Cal.App.4th 771, 795.) Surprise pertains to hidden terms or the lack of informed choice by the weaker party. (Ibid.)

The

adhesive nature of a contract is a factor the court may

consider in determining the degree of procedural

unconscionability. (See Carmona

v. Lincoln Millennium Car Wash, Inc. (2014)

226 Cal.App.4th 74, 84 fn.4.) Contracts

are adhesive when they are “imposed

and drafted by the party of superior bargaining strength, [relegating] the subscribing party only the opportunity

to adhere to the contract or reject it.” (Neal

v. State Farm Ins. Cos. (1961)

188 Cal.App.2d 690, 694.) However, “a compulsory

pre-dispute arbitration agreement is not rendered unenforceable just because it is required as a condition of employment or offered on a 'take it or

leave it' basis." (Lagatree v. Luce, Forward, Hamilton & Scripps (1999) 74 Cal.App.4th 1105, 1127.) The Court must consider the mandatory nature of an arbitration agreement to ensure it is fair and not procedurally unconscionable. (See Armendariz, supra, 24 Cal.4th at 115.)

Plaintiff contends the MAA is procedurally unconscionable because of its adhesive nature (see Opposition, p. 12:22-28) and because it was "buried in a training module." (See Opposition, p. 13:1-3.) The Court disagrees with the assertion that the MAA was "buried in training module." Rather, it was presented as its own designated training course that Plaintiff himself acknowledges he viewed and completed. (See Riba Decl, ¶ 8; see id. at Exh. C.) Therefore, the Court does not find Plaintiff's claim he did not see the MAA or was given insufficient time to review its terms to be persuasive. Furthermore, Plaintiff's supporting citation is improper. (See Opposition, p. 13:2-3 [citing Bannister v. Marinidence Opco, LLC (2021) 64 Cal.App.5th 541].) Plaintiff specifically refers to pages 549 and 550 of said case, but those pages do not exist. The case only goes up to page 548. (See Bannister v. Marinidence Opco, LLC (2021) 64 Cal.App.5th 541, 548.) Also, the case does not discuss arbitration agreements that are hidden in "training modules". (See id. at pp. 546-58 [the issue discussed is the assertion that someone else allegedly signed the employee's arbitration agreement].) Therefore, reliance on this case is misguided.

Lastly,

Plaintiff contends that the MAA is procedurally unconscionable because:

(1) no final executed copy was provided; (2) it was presented in dense, small-print font; and (3) it was a part of a "click-through" onboarding process.

As to the first point, even if Plaintiff could not download a copy of the MAA with his purported signature, he could still download a copy of the MAA itself. Thus, Plaintiff still had an opportunity to keep a copy of the MAA for his own records. (See Riba Decl., ¶ 9 ["The module contained a "download" button, but it only produced a blank copy of the agreement. I never received or saw a completed copy bearing my name or signature."].) Furthermore, Plaintiff does not cite any supporting case law demonstrating that failure to provide a copy of a fully executed arbitrated agreement is procedurally unconscionable.

As to the second point, while Defendant's copy

of the MAA is in dense, small-print font, the MAA was presented to Plaintiff in a slideshow with normal-sized, bold font. (See Boyce Decl., Exh. A; see also Riba Decl., Exh. C, pp. 8-33.) Furthermore, Plaintiff's reliance on *Fuentes v. Empire Nissan, Inc.* (2026) 19 Cal.5th 93, is misguided as the arbitration agreement was presented only in small and illegible type. (See *id.* at p. 104.) As noted, in this case the MAA was presented to Plaintiff in a slideshow with normal-sized, bold font. (See Riba Decl., Exh. C, pp. 8-33.)

As to

the third point, even if the MAA was presented via "click-through," it was still made clear that agreeing to arbitration was a condition of employment. Thus, even if Plaintiff had no way to explicitly refuse to accept the MAA, he had the opportunity to refuse employment with Defendant. (See *Diaz v. Sohnen Enterprises* (2019) 34 Cal.App.5th 126, 130.) Plaintiff does not provide any supporting case law that presenting the MAA via "click-through" makes it procedurally unconscionable. Furthermore, Plaintiff's allegation that he was "rushed" when filling out the MAA is conclusory and unsupported by evidence. Plaintiff does not testify as to how much time he was given to complete the Management Arbitration Agreement course, if Defendant was pressuring him to quickly complete said course, or if he could have requested more time to complete the course. (See generally Riba Decl.) Without any supporting testimony, the Court cannot blanketly accept that Plaintiff was "rushed."

In

short, the only factor leaning in favor of the MAA being procedurally unconscionable is its adhesive nature. This alone, however, does not render the MAA unenforceable unless there are other elements of procedural unconscionability. The Court does not find other elements of procedural unconscionability and therefore does not find the MAA to be procedurally unconscionable.

Substantive Unconscionability

Because

the Court does not find the MAA to be procedurally unconscionable (see § III(a)), the MAA cannot be ruled unenforceable on unconscionability grounds. (See *Armendariz*, supra, at 113-15.)

Nevertheless, the Court does not find that Plaintiff has shown the MAA is substantively unconscionable. The MAA is mutual as it covers claims by both Plaintiff and Defendant. (Riba Decl., Exh. C at p. 16.) It is limited to

employment-related claims and does not therefore appear overbroad. (Id.)

And the MAA provides for certain discovery to be conducted and allows the parties to seek permission from the arbitrator for additional discovery upon a showing of need. (Id. at p. 26.)

In

short, the Court does not find that Plaintiff has shown the MAA is substantively unconscionable.

#### CONCLUSION<sub>2</sub>

For the foregoing

reasons, Defendant's Motion to Compel Arbitration is GRANTED. The proceedings in this department are stayed pending arbitration. The Court set a Status Conference regarding Arbitration Status for June 22, 2027, at 8:30 a.m.